

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

BAL CONTAINER LINE CO., LIMITED, *Respondent*.

DOCKET NO. 25-01

Served: April 7, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER GRANTING JOINT MOTION TO EXTEND DEADLINE

On April 4, 2025, the parties filed a joint motion ("Motion") seeking to extend the deadline for submission of discovery disputes from April 8, 2025, to April 22, 2025, due to Respondent's counsel's recent change in law firms. Motion at 1-2. The parties state the extension request would not impact other discovery deadlines in the Scheduling Order. Motion at 2.

The parties are encouraged to work together to narrow their discovery requests. Moreover, the parties are instructed to discuss the possibility of stipulating to relevant facts and to focus on the elements of the claims alleged. Moreover, the parties are encouraged to discuss settlement of this proceeding. However, such discussion will not stay other deadlines in the proceeding as engaging in discovery could provide evidence that assists the parties in resolving their differences, while delays hinder the parties' progress. If a settlement is reached, the parties must file a motion requesting approval of it along with a copy of the settlement. 46 C.F.R. § 502.72(a)(3).

Good cause having been stated, it is hereby ordered that the joint motion be **GRANTED**. The deadline for submission of discovery disputes is extended to April 22, 2025. The other deadlines in the Scheduling Order are not changed.

Counsel are reminded that courtesy copies of all filings should be sent to Judges@fmc.gov, as well as to Secretary@fmc.gov and opposing parties, as required by the Initial Order in this proceeding.


Erin M. Wirth
Chief Administrative Law Judge